



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 18, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202201968 (Incident Date: March 22, 2022) regarding Sergeant Daniel Cody, Tax No. 954648 (DADS No. 2023-28686)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Sergeant Daniel Cody do not warrant disciplinary action.

On March 22, 2022, Sergeant Cody and several other officers responded to a dispute with a knife resulting in the arrest of two individuals. At some point, one of the individuals being transported by Sergeant Cody and other officers became combative. While in the rear of the patrol vehicle, she began twisting her body, kicking and grabbing at the officers, and eventually banging her own arm/elbow into the rear passenger door numerous times. She continued to move her body around the back seat until she eventually fell into the rear foot well area. There, she continued to scream and complain of being asthmatic. Throughout this time, and as a result of the individual's behavior, multiple officers were required to restrain her so that she would not hurt herself or others. As a result, a decision was made to remove her to the hospital for medical and psychological evaluation.

Shortly after arriving at the precinct, EMS responded and the individual was brought to the ambulance. Sergeant Cody was outside during the individual's escort from the precinct to the ambulance. As he stood outside, the individual's girlfriend approached on foot and inquired as to where she was going to be taken. Sergeant Cody responded that she was going to the hospital.

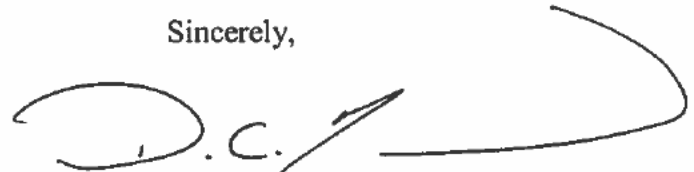
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The girlfriend further questioned "but, why?" Sergeant Cody replied, "for psych, she is psychotic." Shortly after Sergeant Cody's statement, the girlfriend is heard yelling out for the individual to relax, as she presumably continued to act out. The entire interaction was captured on Sergeant Cody's Body Worn Camera and throughout the conversation he is depicted using a calm and professional tone when responding to the girlfriend's requests for information. His responses were clearly intended to provide an accurate explanation to the girlfriend about what was happening and not meant to ridicule or offend the individual. Additionally, the comments were not made within earshot of the individual. In fact, neither the individual, nor the girlfriend complained that Sergeant Cody used offensive language or was discourteous. These allegations were added after CCRB investigated the actual allegations made by the individual, all of which were unsubstantiated, unfounded, within NYPD Guidelines, or closed as unable to determine.

Therefore, based on the foregoing, Sergeant Cody will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (2) (Prohibited Conduct/Offensive Language) and Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department).

Sincerely,

A handwritten signature in black ink, appearing to read "A. Marino", with a large, sweeping flourish extending to the right.

Anthony Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office